



File No.: EXP202211953 (PS/00080/2023)

RESOLUTION OF THE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: On 30/09/22, Mr. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection. The complaint was directed against the entity CHATWITH.IO WORLDWIDE, S.L. with CIF B88184239, owner of the website ***URL.1 (the complained party), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR) and Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and against Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The reasons on which the complaint was based are:

"The company IURIS MARKETING S.L. (currently CHATWITH.IO WORLDWIDE S.L.) is the owner of the website ***URL.1.

The complained party processes the personal data of visitors accessing the website, obtaining them both directly from the interested parties through information requests when they attempt to contact the lawyers advertised on the page, and through the use of cookies that are installed on the visitor's computer when consulting the website.

This is reported by the data controller itself through a message that appears when accessing iurisnow.com, in a pop-up window that overlaps the main window and that under the title "Privacy and Transparency" informs the user that both the website owner and its partners carry out the processing of the personal data of the interested parties.

Specifically, it is indicated in the first part of the informative text that "We and our partners use cookies to Store or access information on a device. We and our partners use data for Personalized ads and content, ad and content measurement, audience insights, and product development." At the same time, towards the middle of the text, it can be read that "Some of our partners may process your data as part of their legitimate business interest without asking for your consent. To see the purposes they believe they have a legitimate interest in or to object to this data processing, use the link to the list of providers below." A copy of the pop-up window is attached (Doc. evidentiary 4).

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The data controller uses dark patterns of overloading and hiding in the design of the user interface through which the privacy options that will be applied to the processing of the website visitor's data are configured, specifically when the data subject expresses their opposition to data processing based on the legitimate interest of the controller and third parties, which it refers to as "partners."

The dark pattern of overloading is clearly observed when accessing the section of the pop-up window "List of Providers." Once there, the data subject encounters a list of 1,522 companies, of which, according to the estimate made by the complainant, 338 have the "Legitimate Interest" checkbox marked by default, which forces the data subject, in the case of wanting to express opposition to the processing, to check each of the 338 boxes one by one throughout the entire list, without the option to oppose by indicating it once or a reasonable number of times that does not cause fatigue to the affected individual. In addition to the previous 338 boxes, there are nine more that are found in the "Manage Settings" section.

Upon accessing, it can be observed that a set of nine processing purposes appears under the title "Purposes," each of them with its corresponding checkbox marked by default in favor of processing based on legitimate interest, requiring the selection of each box one by one to oppose each of the

purposes established by the controller. Just like in the previous situation, there is no option in the window that allows opposing all of them at the same time, or a reasonable number of times. For evidentiary purposes, a copy of the "List of Providers" section (Evidentiary Document 5), a copy of the "Manage Settings" section for evidentiary purposes (Evidentiary Document 6), and the formulas used for calculating the companies on the list and estimating the affected privacy option checkboxes (Evidentiary Document 17) are provided. On the other hand, the dark pattern of hiding is used in the "List of Providers." If you access this section, it can be observed with some difficulty that there is an estimated set of 32 companies that have the consent checkbox marked with the option blocked, without the data subject being able to revoke it.

These checkboxes appear in a grayish color that blends with the white used as the background of the screen, making their location difficult and serving as a camouflage mechanism, preventing detection unless increased visual effort is made (Evidentiary Documents 5 and 17). The information provided by the controller regarding the legitimate interests of third parties and the purposes of processing to which personal data is destined is not transparent.

The legitimate interests of third parties and the purposes of processing are neither clearly nor comprehensibly determined or explained in the information provided to the data subjects. Within the privacy policy of the controller, the purposes for which the processing is carried out are not indicated, not even in the title.

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"Origin, purpose, and legitimacy of the data provided," there may be some reference to the purposes for which the data is collected.

Additionally, there is no information regarding the legitimate interests of third parties in the section titled "Recipients of the data or transfer to third parties," nor in other parts of the privacy policy, making it necessary to access individually the different privacy policies of each of the 1,522 companies listed in the so-called "Supplier List," for which a URL link does appear within the expandable information of each "supplier." The only information that seemingly refers to both the purposes and the legitimate interests of third parties can be found somewhat unclearly in the text that appears within the pop-up window, which mentions that the data is used for "personalized ads and content, ad and content measurement, audience insights, and product development," without providing further information. (Evidence documents 2 and 4).

The data controller does not mention in the information provided to the interested party, both in the pop-up window and in the privacy policy, the intention or possibility of data transfers to third countries outside the European Union, nor the existence or absence of an adequacy decision by the Commission, nor the appropriate safeguards that may be adopted so that the interested party can exercise their rights regardless of the international transfer. This is despite the fact that a significant number of the companies listed in the "Supplier List" do inform in their respective privacy policies that the data collected by them may be transferred outside the European Union.

SECOND: On 11/15/22, in accordance with the provisions of Article 65.4 of the LOPDGDD, this Agency forwarded the complaint to the respondent party for analysis and to report back within one month on the matters raised in the complaint letter.

According to the certificate from the Electronic Notifications and Electronic Address Service, the request letter sent to the respondent party on 11/18/22, via the electronic notification service "NOTIFIC@", was rejected at the destination on 11/29/22. Although the notification was validly carried out by electronic means, with the procedure being considered completed in accordance with the provisions of Article 41.5 of the LPACAP, an attempt was made to send it by postal mail, which was returned to the sender on 12/14/22 with the message "unknown."

THIRD: On 12/30/22, the Director of the Spanish Agency for Data Protection issued an agreement to admit the processing of the complaint filed, in accordance with Article 65 of the LPDGDD, upon noting possible rational indications of a violation of the regulations within the competencies of the Spanish

Agency for Data Protection.

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FOURTH: On 02/08/23, this Agency accessed the website ***URL.1, confirming the following characteristics regarding its "Privacy Policy" and its "Cookie Policy":

a).- Regarding the processing of personal data:

a.1.- It is verified that personal data can be obtained on the website through the link <>, located at the top of the main page, where personal data such as name, phone number, email, and subject can be entered.

Before submitting the form, the user must check the box:

"_ I have read and accept the <> and the <>"

a.2.- Personal data can also be entered when registering on the website, through the link available at the top right of the main page <>, from which a form ***FORMULARIO.1 is displayed where personal data such as name, surname, address, phone number, and email must be entered. There is also the option to attach a photo.

Before submitting the form, the user must check the box:

"_ I have read and accept the <> and the <>"

a.3.- On the pages of the two previous forms, there is a banner with the following information:

In accordance with the provisions of L.O. 3/18 Iuris NOW informs you that the personal data you may provide is part of a data processing to which the following applies:

Responsible: IURIS MARKETING S.L.

Purpose: To register on the platform to be listed as a professional and receive client contacts

Legitimization: Consent of the interested party or their legal representative.

Recipients: Iuris Marketing S.L. and the contracted services.

Rights: Access, rectify, and delete the data, as explained in our privacy policy

b).- Regarding the "Privacy Policy":

If you access the "Privacy Policy" through the links available in the previous forms or through the link at the bottom of the main page, the website redirects the user to a new page ***URL.2 where the following information is provided:

b.1.- Regarding the "legal notice," information is provided about:

- The responsible party for the website

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- Access and Use Conditions of the Portal

- Third-Party Content

- Use of Links

- Disclaimer

- Applicable Legislation and Jurisdiction

b.2.- Regarding the Privacy Policy, the following information is provided:

DATA PROCESSING RESPONSIBLE

The ownership of this website, with domain ***DOMINIO.1, belongs to Iuris Marketing S.L., hereinafter referred to as "Iuris NOW," with an address at ***DIRECCIÓN.1, and a contact email of ***EMAIL.1.

As the Data Processing Responsible, you are informed that:

DATA PROTECTION RIGHTS:

Users of Iuris NOW can direct any communication, either in writing to the previously provided address

or via email (**EMAIL.1), with electronic communication being faster and more effective. The user may always exercise the following rights:

Right of access: Users of Iuris NOW may request access to the personal data we hold about them.

Right to request rectification: In cases where the data is incorrect or needs to be updated for any relevant reason, rectification may be requested.

Right to erasure: The interested party may request Iuris NOW to erase any personal data concerning them at any time.

Right to request the limitation of processing: A request may be made to Iuris NOW to limit the data obtained, either because the personal data is no longer needed for the purposes of processing, but is necessary for the interested party.

Right to object to processing: Iuris NOW will cease processing the data provided by the user unless legitimate and compelling reasons for continuing the processing are demonstrated.

Right to data portability: If you wish for your data to be processed by another company or person, Iuris NOW commits to facilitating such data portability to the new responsible party upon request. In accordance with the aforementioned legislation mentioned at the beginning of this text, we offer users the model, form, and other interesting information provided by the Spanish Data Protection Agency at the following link:

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Additionally, within the rights of users, we offer the possibility to withdraw consent that has been granted by any means it was obtained, as the user of the website has the right to withdraw the consent given at any time, without justification. However, the withdrawal of consent will not invalidate the processing based on consent prior to its withdrawal.

Finally, we want to emphasize the importance of exercising these rights, and any issue or disagreement that may arise with Iuris NOW regarding the processing of data may be presented as complaints to the relevant data protection authority, which in Spain is the Spanish Data Protection Agency.

DATA RETENTION OF PROVIDED INFORMATION

The disaggregated data will be retained indefinitely.

User data: The retention period of the personal data provided to Iuris NOW will vary depending on the service contracted by the user with Iuris NOW; however, the retention of data will be the minimum required for the specific case, generally as follows:

Clients: From the start of the service provision relationship with the client until 4 years after the completion of the service provision.

Blog comments: From the time the user leaves their comment on the blog until they request its deletion.

Newsletter subscribers: From the time the user subscribes to the newsletter until they withdraw their consent.

Contact form: From the time the user consents to send their data via the contact form until they withdraw their consent.

Download a document: From the time the user downloads the document and gives their consent to receive communications.

APPLICATION PRINCIPLES TO PERSONAL INFORMATION

In the processing of personal data you provide through the established means, Iuris NOW will apply the following principles required by applicable legislation:

Principle of lawfulness, fairness, and transparency: To carry out the processing of your data, I will always require express, unequivocal, informed consent prior to processing, and the information and processing of the same will be specifically intended for the purpose you have requested.

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Principle of data minimization: I will only require the information necessary for the specific case; I do not want to handle more information than necessary, but only that which is essential to provide a response.

Principle of data retention limitation: The data you provide will be kept in the file owned by Iuris NOW for the essential and necessary period.

Principle of integrity and confidentiality: The data will be processed in a manner that ensures its security and confidentiality, taking the necessary precautions so that only authorized persons or third parties have access to it.

SOURCE, PURPOSE, AND LEGITIMACY OF THE PROVIDED DATA

Based on all of the above, the category of data requested from users is a basic category; it does not involve any category of specially protected data.

Web hosting: The Iuris NOW website is hosted on OVH (OVH HISPANO SL NIF: B-83834747), a company based in Madrid, and the provisions established in the GDPR and LOPDyGDD apply.

Data collected through the website: The data collected through the website will be incorporated into the corresponding file; in addition to the information provided, the IP address is also collected, which in the vast majority of cases is not used.

Social networks: Iuris NOW has a presence on various social networks, recognizing ourselves as responsible for the data that users handle privately through the social networks with Iuris NOW, in order to extract it to provide the requested information.

The purpose and legitimacy of the processing of data that Iuris NOW carries out on social networks will be that permitted by the social network.

DATA COLLECTION

The user guarantees that the personal data they have provided through the various means offered and mentioned previously is accurate and truthful, taking responsibility for communicating to Iuris NOW any modifications that arise in the personal data.

If the data provided belongs to a third party, the user guarantees that they have obtained the consent of that third party to provide the data.

When providing the data, the user declares and accepts that they have read this privacy policy, expressly consenting to the processing of personal data in accordance with what is established on this page.

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Furthermore, when a user requests information, they are providing minimal personal information for which Iuris NOW will be responsible.

When requesting information, data such as the IP address, name, email address, phone number, and other information will be collected. This data will be managed and used by Iuris NOW.

RECIPIENTS OF THE DATA OR TRANSFER TO THIRD PARTIES

For the proper development of the activities carried out by Iuris NOW, it is necessary to have different professionals or tools with which the previously described activities can be developed; therefore, Iuris NOW shares strictly necessary data under their corresponding privacy conditions with the following providers:

Google Analytics: The Iuris NOW website uses an analytical service system provided by Google Inc, a company located at 1600 Amphitheatre Parkway, Mountain View (California), CA 94043, United

States. This program uses "cookies," which are text files placed on your computer when you visit the website; the purpose is to help luris NOW understand what users do when they visit their website. The information provided by Google Analytics includes the IP address of the visitor, which will be transmitted and stored by Google on its servers located in the United States.

The luris NOW website is hosted on OVH. The luris NOW website has SSL encryption that allows the secure transmission of your personal data through the various means by which we collect data on our website, which is developed using WordPress; more information can be found at Automattic.

Google AdSense: The aforementioned company Google Inc offers advertising services that are being used on this website; for this, a cookie is used to display a series of advertisements on our website.

The user can disable the use of these cookies by following the instructions provided in the Google section itself.

For this advertising system, Google offers a platform to different associated companies to publish ads through its platform, so certain information is used to offer ads about products and services that may be of interest, but at no time is the name, address, email address, or phone number collected. If you wish to obtain more information about this practice and learn about its different options, please consult the following link.

Google Maps: This is a map visualization service provided by Google Inc, which allows us to provide an interactive map on our website – Google Privacy Policy.

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Lawyers: As part of our main activity, when you provide us with your data and request advice, we will offer your data to the best lawyer or to the lawyer you have requested.

CONFIDENTIALITY

luris NOW is committed to the use and processing of personal data collected through the website, respecting confidentiality at all times and using it for the purpose for which it was collected. We are committed to carrying out all necessary actions regarding data protection.

ACCEPTANCE AND CONSENT

The user accepts that they have been informed of the conditions regarding data protection inherent to the applicable legislation, accepting and consenting to the processing of their data by luris NOW.

SECURITY MEASURES

This website includes an SSL certificate, which is a security protocol that ensures secure transmission of data between the user and luris NOW. We also have a specific security service and constantly update all technologies we use on our site.

Furthermore, luris NOW will keep updated and apply all necessary measures to provide the highest possible security to users; however, absolute invulnerability on the internet does not exist, and we commit to communicating any incident that may affect users as established by law.

Security measures will be reviewed periodically to ensure they remain useful for the purpose for which they were collected.

CHANGES TO THE PRIVACY POLICY

luris NOW reserves the right to modify this policy to adapt it to future legislative or jurisprudential changes, as well as changes made to the services of luris NOW. luris NOW will announce any essential changes that occur.

c).- About the Cookie Policy:

1.- Regarding the use of cookies before the user provides their consent:

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on the website, it has been verified that cookies that are not technical or necessary are used, with the following characteristics:

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Performance Cookies

(3):

These cookies allow us to quantify the number of visits and sources of traffic to evaluate the performance of the site. They help us understand which pages are the most or least visited and how visitors navigate the site.

cookies

Domain

Description

_gid

***DOMAIN.1

This cookie is set by Google Analytics. It stores and updates a unique value for each page visited and is used to count and track pages viewed.

_ga_BHX4LX8C4J

***DOMAIN.1

Google Analytics uses this cookie to maintain the session state.

_ga

***DOMAIN.1

This cookie name is associated with Google Universal Analytics, which is a major update of Google's most widely used analytics service. This cookie is used to distinguish unique users by assigning a randomly generated number as a client identifier. It is included in every page request on a site and is used to calculate visitor, session, and campaign data for site analytics reports.

Targeting Cookies

(1):

These include social media cookies that are placed on sites to track users across the web and provide them with advertisements.

cookies

Domain

Description

_gat_gtag_UA_181162822_9

***DOMAIN.1

This cookie is part of Google Analytics and is used to limit requests (request rate throttling).

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2.- About the cookie information banner on the first layer:

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without taking any action on the website, a cookie information banner appears at the bottom of the main page with the following message:

Welcome to iurisnow.com

iurisnow.com requests your consent to use your personal data for the following purposes:

Personalized ads and content, ad and content measurement, audience insights, and product development.

Store or access information on a device

More information →

Your personal data will be processed, and information from your device (cookies, unique identifiers, and other device data) may be stored, accessed, and shared with <> or used specifically by this website or application.

Some providers may process your personal data based on legitimate interest, to which you can object

by managing your options below. Look for a link at the bottom of this page or in our privacy policy to revoke consent.

<>

<>

a).- If you access the list of providers, a new page appears with the following information:

What external providers can access my data?

These external providers may use your data to provide services:

Exponential Interactive, Inc d/b/a VDX.tv

....

Index Exchange, Inc.

....

Vodafone

...

Netflix

...

> 200

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b).- If you access the control panel through the option <>, the website displays a new page with the following information:

Preferences regarding data. Manage your data

You can choose how your personal data is used. The providers request your permission to do the following:

Store or access information on a device

Cookies, device identifiers, or other information can be stored or accessed on your device for the purposes presented to you. See details

Consent OFF ☐

Select basic ads

Ads may be displayed based on the content being viewed, the application being used, your approximate location, or your type of device. See details

Consent OFF ☐

Legitimate interest ☐ ON

Create a personalized advertising profile

A profile about you and your interests can be created to show you personalized ads that are relevant to you. See details

Consent OFF ☐

Legitimate interest ☐ ON

Select personalized ads

Personalized ads can be shown based on your profile. See details

Consent OFF ☐

Create a profile for content personalization

A profile about you and your interests can be created to show you personalized content that is relevant to you. See details

Consent OFF ☐

Legitimate interest ☐ ON

Select personalized content

Personalized content can be shown based on your profile. See details

Consent OFF ☐

Legitimate interest ☐ ON

Measure ad performance

The performance and effectiveness of the ads you see or interact with can be measured. See details

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Consent OFF ☐

Legitimate interest ☐ ON

Measure content performance

The performance and effectiveness of the content you view or interact with can be measured. See details

Consent OFF ☐

Legitimate interest ☐ ON

Use market research to generate information about the audience

Market research may be used to gain more information about the audience visiting websites/apps and viewing ads. See details

Consent OFF ☐

Legitimate interest ☐ ON

Develop and improve products

Your data may be used to improve existing systems and/or software, as well as to develop new products. See details

Consent OFF ☐

Legitimate interest ☐ ON

Ensure security, prevent fraud, and debug errors

Your data may be used to monitor and prevent fraudulent activities, and to ensure that systems and processes function correctly and securely. See details

Technically serve ads or content

Your device may receive and send information that allows you to view and interact with ads and content. See details

Match and combine offline data sources

Data obtained from offline data sources may be combined with your online activity to support one or more purposes. See details

Link different devices

It can be determined that different devices belong to you or your household for one or more purposes. See details

Receive and use device characteristics sent automatically for identification

Your device can be distinguished from other devices based on the information it sends automatically, such as the IP address or browser type. See details

Use precise geographic location data

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Your precise geographic location data may be used for one or more purposes. This means that your location may be accurate to within several meters. See details

Consent OFF ☐

<>

If you access the provider control panel, a new page appears:

Accept our providers

Providers may use your data to offer you services. If you reject a provider, they will no longer be able

to use the data you have shared with them.

Exponential Interactive, Inc d/b/a VDX.tv

Cookie duration: 90 days. The duration of cookies is reset after each session. See details

Consent OFF ☐

Legitimate Interest ☐ ON

Roq.ad Inc.

Cookie duration: 365 days. The duration of cookies is reset after each session.

Consent OFF ☐

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<>

<>

3rd.- Regarding the information provided in the "Cookie Policy":

There is no page or link that redirects the user to the "Cookie Policy." The only existing information about cookies is the one provided in the banner on the main page when accessed for the first time and the information offered through the control panel.

4th.- Regarding how to withdraw consent for the use of cookies after having offered it:

There is a link at the bottom of the website <> through which you can access the control panel at any time during web browsing.

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FIFTH: On 14/04/23, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringements of:

a) Infringement of Article 13 of the GDPR, due to the deficiencies observed in its "Privacy Policy," with an initial sanction of 2,000 euros, without prejudice to the outcome of the instruction. It was also warned that the alleged infringements, if confirmed, may lead to the imposition of measures, according to the cited Article 58.2 d) of the GDPR.

b) Infringement of Article 5.1.a) of the GDPR, for the use of dark patterns of overloading and skipping, with an initial sanction of 5,000 euros, without prejudice to the outcome of the instruction. It was also warned that the alleged infringements, if confirmed, may lead to the imposition of measures, according to the cited Article 58.2 d) of the GDPR.

c) Infringement of Article 22.2 of the LSSI, for the deficiencies detected on its website regarding the "Cookies Policy," with an initial sanction of 5,000 euros, without prejudice to the outcome of the instruction.

The notification of the initiation agreement was attempted in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP). According to the Certificate from the State-owned Company Correos y Telégrafos, S.A., the initiation document sent to the address CHATWITH.IO WORLDWIDE, S.L. C/ ***ADDRESS.1, was returned to the sender due to Excess (Not collected at the office) on 03/05/23. The following information is associated (Unit: XXXXXXXX):

- 1st delivery attempt on 21/04/23 at 12:05, by employee 282402 resulted in 03 "Absent."
- 2nd delivery attempt on 24/04/23 at 20:20, by employee 186402 resulted in 03 "Absent." (A notice was left in the mailbox).

On 09/05/23, the notification of the initiation agreement was made by announcement in the Single Edict Board of the Official State Gazette, in accordance with Article 44 of the LPACAP. In this announcement, the respondent is informed about the possibility of obtaining a copy of the opening agreement.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and after the period granted for the submission of allegations has elapsed, it has been

confirmed that no allegations have been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement about the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts in which the C/ Jorge Juan, 6

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attribution, the infringement attributed to the respondent and the sanction that could be imposed.

Therefore, considering that the respondent has not made any allegations regarding the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered a proposal for resolution in the present case.

In view of all that has been acted upon, the following are considered proven facts by the Spanish Agency for Data Protection in this procedure,

PROVEN FACTS.

First: The information provided in the “Privacy Policy” ***URL.2, and in relation to what is stipulated in Article 13 of the GDPR mentioned, the data controller of the personal data obtained through the website does not offer information about or at least not detailed information regarding the following points:

- The purposes of the processing to which the personal data is destined and the legal basis for the processing has ambiguous wording, or lacks the clarity required.
- The legitimate interests of third parties referred to by the data controller in the information banner on the main page are not clearly detailed, necessitating individual access to the different privacy policies of each of the more than 1,000 companies listed in the “List of providers,” with the information subsequently appearing unclearly in the text of the pop-up window of each provider.
- There is no reference to the intention of the data controller to transfer personal data to a third country or international organization outside the European Union, despite the fact that some of the companies (providers) listed in the “List of providers” are located outside the EU.

Second: Regarding the use of dark patterns of overloading and skipping, in the case at hand, the dark pattern of overloading and skipping is observed when accessing the “List of providers” section; once there, the interested party encounters a list of about 130 companies (providers), of which more than half have the box for “accepting data processing for legitimate interest” pre-checked, which obliges the user, in the case of wanting to show opposition to the processing, to uncheck each one throughout the entire list, without the option to oppose by indicating it once or a reasonable number of times that does not cause fatigue to the affected party.

Third: Regarding the Cookie Policy on the website in question, the following irregularities have been detected:

- Upon entering the website for the first time, without accepting cookies or taking any action on the page, it has been verified that cookies that are not technical or necessary are used: 3 Performance Cookies: _gid; _ga_BHX4LX8C4J and _ga and one Targeting Cookie: _gat_gtag_UA_181162822_9

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- In the cookie control panel, it has been detected that the groups of cookies are divided into two options, accepting cookies by “Consent” which are pre-checked in the “not accepted” option and accepting cookies by “Legitimate Interest” which are pre-checked in the “accepted” option. However, if all the options marked “accepted” are unchecked, it is verified that the same cookies detected upon entering the website continue to be used without consent being granted.

- There is no information about cookies in the second layer or link that allows the user to redirect to the “Cookie Policy” of the website. The information about cookies appears scattered across each of the options in the control panel.

LEGAL GROUNDS

I.-

Competence:

- Regarding the processing of personal data and the “Privacy Policy”: The Director of the Spanish Agency for Data Protection is competent to resolve this procedure, by virtue of the powers recognized to each Control Authority by Article 58.2 of the GDPR and as established in Articles 47, 64.2, and 68.1 of the LOPDGDD.

- Regarding the “Cookie Policy”: The Director of the Spanish Agency for Data Protection is competent to resolve this procedure, in accordance with the provisions of Article 43.1, second paragraph, of the LSSI Law.

II.-1

Regarding the processing of personal data on the website and the “Privacy Policy”

In the verification carried out on the website, ***URL.1 it is confirmed that personal data can be obtained through the <> link, intended for inquiries, and personal data can also be entered when registering on the website, through the link available at the top right of the main page <>.

The “Privacy Policy” can be accessed through the links available in the aforementioned forms or through the link available at the bottom of the main page, <>.

Well, Article 13 of the GDPR details the information that must be provided to the interested party when the data is collected directly from them, establishing that:

“1. When personal data relating to an interested party is obtained from them, the data controller shall provide them, at the time of obtaining such data, with: a) the identity and contact details of the controller and, where applicable, of their representative; b) the contact details of the data protection officer, where applicable; c) the purposes of the processing for which the data are intended.

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personal data and the legal basis for processing; d) when the processing is based on Article 6, paragraph 1, letter f), the legitimate interests of the controller or a third party; e) the recipients or categories of recipients of the personal data, if applicable; f) if applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49, paragraph 1, second sentence, reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the fact that they have been provided.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time when the personal data are obtained, with the following information necessary to ensure fair and transparent data processing: a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period; b) the existence of the right to request from the data controller access to personal data concerning the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability; c) when the processing is based on Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent prior to its withdrawal; d) the right to lodge a complaint with a supervisory authority; e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data; f) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data

subject.”

In the case at hand, from the information provided in the “Privacy Policy” ***URL.1 and in relation to the provisions of Article 13 of the cited GDPR, it is noted that it does not provide information on the following points:

- The purposes of the processing for which the personal data are intended and the legal basis for processing have ambiguous wording, or lack the clarity and precision required.
- The legitimate interests of third parties referred to by the data controller in the information banner on the main page are not clearly detailed, requiring individual access to the different privacy policies of each of the more than 1,000 companies listed in the “Supplier List,” with the information subsequently appearing unclearly in the text of the pop-up window of each provider.

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There is no reference to the intention of the data controller to transfer personal data to a third country or international organization outside the European Union, despite the fact that some of the companies (providers) listed in the “Supplier List” are located outside the EU.

II.-2

Sanction

The irregularities detected in the “Privacy Policy” of the website ***URL.1 may constitute a violation of Article 13 of the GDPR.

This violation may be sanctioned with a fine of up to €20,000,000 or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount, in accordance with Article 83.5.b) of the GDPR.

In this regard, Article 74.a) of the LOPDGDD, concerning minor violations, indicates that:

Minor violations of a merely formal nature of the articles mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 are considered minor and will prescribe after one year, particularly the following:

a) The failure to comply with the principle of transparency of information or the right of information of the affected party by not providing all the information required by Articles 13 and 14 of Regulation (EU) 2016/679.

In light of the above, it is deemed appropriate to impose a sanction of €2,000 (two thousand euros) for the violation of Article 13 of the GDPR.

II.-3.

Measures

Once the violation is confirmed, it is necessary to determine whether it is appropriate to impose on the data controller the adoption of adequate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

The text of this agreement establishes what the alleged violations have been and the facts that give rise to the breach of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the specific types of procedures, mechanisms, or instruments for implementing them correspond to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, it is appropriate to require the responsible entity to adapt the “Privacy Policy” of its website to the current regulations, specifically to what is stipulated in Article 13 of the GDPR, within the timeframe indicated in the dispositive part.

It is warned that failure to comply with the requirements of this body may be considered an administrative violation in accordance with the provisions of the GDPR, classified as a violation in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures. III.-1

On the use of dark patterns of overloading and skipping

According to the complainant, the data controller uses dark patterns of overloading and skipping in the design of the user interface through which the privacy options that will apply to the processing of the visitor's data on the website are configured, specifically when the interested party expresses their opposition to the processing of data based on the legitimate interest of the controller and third parties, which they refer to as "partners".

The term "dark patterns" refers to interfaces or user experience implementations designed to influence the behavior and decisions of individuals in their interaction with websites, apps, and social networks, in such a way that they make decisions potentially harmful to the protection of their personal data.

As stated in Recital (39) of the GDPR:

All processing of personal data must be lawful and fair. For natural persons, it must be entirely clear that personal data concerning them are being collected, used, consulted, or otherwise processed, as well as the extent to which such data are or will be processed.

The principle of transparency requires that all information and communication relating to the processing of such data be easily accessible and easy to understand, and that plain and clear language be used. This principle particularly refers to the information provided to data subjects about the identity of the data controller and the purposes of the processing, as well as additional information to ensure fair and transparent processing with respect to the affected natural persons and their right to obtain confirmation and communication of the personal data concerning them that are subject to processing, (...).

In this regard, Article 5 of the GDPR outlines the "Principles relating to processing" and in paragraph 1.a) establishes that:

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Personal data shall be processed lawfully, fairly, and transparently in relation to the data subject "lawfulness, fairness, and transparency."

In application of the principle of fairness established in Article 5.1.a, data controllers must ensure that dark patterns are not employed, at least, in relation to decisions regarding the processing of their personal data.

The European Data Protection Board (EDPB) adopted for public consultation its "Guidelines on dark patterns in social media interfaces, How to recognize and avoid them." These guidelines, like the AEPD's guide, take Article 5.1.a of the GDPR as a starting point to assess when a design pattern in a user interface corresponds to a dark pattern.

Dark patterns can present themselves to the user in various processing operations, such as during the registration or sign-up process on a social network, when logging in, or in other scenarios such as in the configuration of privacy options, in cookie banners, during the exercise of rights, in the content of a communication informing about a personal data breach, or even when attempting to unsubscribe from the platform.

According to the EDPB Guidelines, dark patterns can be classified into the following categories:

1. Overloading: This consists of presenting too many options to the person who has to make decisions, which ultimately generates fatigue for the user, who ends up sharing more personal information than desired. The most common techniques to produce this overload fatigue are repeatedly showing questions, creating privacy mazes, and displaying too many options.
2. Skipping: This involves designing the interface or user experience in such a way that the user does not think about certain aspects related to the protection of their data, or that they forget them.
3. Stirring: This appeals to the emotions of users or uses visual nudges in the form of effects to influence decisions.
4. Hindering: This aims to create obstacles so that the user cannot easily perform certain actions. This is done through techniques such as placing privacy settings in inaccessible areas, making it very complicated to reach them, or providing misleading information about the effects of certain actions.

5. Fickle: The interface presents an unstable and inconsistent design that does not allow the user to perform the desired actions.
6. Left in the dark: Information or privacy configuration options are hidden or presented unclearly using erratic language, contradictory, or ambiguous information.

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In the case at hand, the dark patterns of overloading and skipping are observed when accessing the "List of providers" section. Once there, the data subject encounters a list of about 130 companies (providers), of which more than half have the box for "accept data processing for legitimate interest" checked by default, which forces the user, in the case of wanting to object to the processing, to uncheck each one individually throughout the entire list, without the option to object by indicating it just once or a reasonable number of times that does not cause fatigue to the affected party.

Taking, for example, the provider "Amazon Advertising," we see that the following information appears in its section:

Cookie duration: 396 (days). The duration of cookies is reset after each session. It uses other forms of storage.

<> | <> | <>

Consent (OFF ☐)

Legitimate interest (☐ ON)

If we expand the information <>, the following information appears:

Amazon Advertising requests the following:

By Consent:

- Store or access information on a device
- Select basic ads
- Create a personalized advertising profile
- Select personalized ads
- Measure ad performance
- Use market research to generate information about the audience
- Develop and improve products

By Legitimate Interest:

- Ensure security, prevent fraud, and debug errors
- Serve ads or content technically

Notably, in this particular example, it is indicated as a legitimate interest both "Ensure security, prevent fraud, and debug errors" and "Serve ads or content technically," a situation that is repeated for the more than 200 providers that appear on the website.

The situation is that there is a button to accept all (<>) or to confirm the chosen options (<>), but there is none to reject all or object to all, which may constitute a dark pattern.

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overloading. All of this without prejudice to the fact that the treatments marked in the ON position of "legitimate interest" may or may not be justified under this basis of legitimization, a matter that is not analyzed in the present procedure.

III.-2

Sanction

The facts presented above may constitute an infringement of the provisions established in Article 5.1.a) of the GDPR, to the extent expressed in the previous Legal Grounds.

This infringement may be sanctioned with a fine of up to €20,000,000 or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount, in accordance with Article 83.5.a) of the GDPR.

In this regard, Article 72.1.a) considers as a "very serious" infringement for the purposes of prescription: "1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and will be subject to a three-year prescription: those that constitute a substantial violation of the articles mentioned therein and, in particular, the following: a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

III.-3

Graduation of the Sanction

The determination of the sanction to be imposed in the present case requires observing the provisions of Articles 83.1 and 2 of the GDPR, which respectively provide the following:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account: a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm they have suffered; b) the intentionality or negligence in the infringement; c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects; d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32; e) any previous infringement committed by the controller or processor; f) the degree of cooperation with the supervisory authority in order to remedy the infringement."

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remedy for the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, particularly whether the controller or processor reported the infringement and, if so, to what extent;

i) when the measures indicated in Article 58(2) have been previously ordered against the controller or processor in relation to the same matter, compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42; and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as financial benefits obtained or losses avoided, directly or indirectly, through the infringement."

Within this section, the LOPDGDD provides in its Article 76, titled "Sanctions and corrective measures":

"1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The ongoing nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

3. It will be possible, additionally or alternatively, to adopt, when appropriate, the remaining corrective measures referred to in Article 83.2 of Regulation (EU) 2016/679.”

According to the transcribed provisions, and without prejudice to what results from the instruction of the procedure, for the purpose of determining the amount of the fine to be imposed on the entity in question, an initial assessment considers the following factors to be concurrent in this case as aggravating:

- The scope or purpose of the data processing operation, as well as the affected parties, (paragraph a).
- It is also considered appropriate to graduate the sanction to be imposed according to the following aggravating criteria established in Article 76.2 of the LOPDGDD:

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- The connection of the infringer's activity with the processing of personal data, (paragraph b), considering that the activity carried out involves the personal data of its clients.
- Considering the factors presented, the assessment that the fine reaches, for the infringement of Article 5.1.a) of the GDPR, is 5,000 euros (five thousand euros).

III.-4

Measures

Once the infringement is confirmed, it is necessary to determine whether it is appropriate to impose on the controller the adoption of adequate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specified manner and within a specified time frame...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

In the text of this agreement, the presumed infringements committed and the facts that give rise to the violation of data protection regulations are established, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them correspond to the sanctioned party, as it is the controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, it is appropriate to require the responsible entity to adapt the “Privacy Policy” of its website to current regulations, specifically to what is stipulated in Article 5.1.a) of the GDPR, within the timeframe indicated in the dispositive part.

It is warned that failure to comply with the requirements of this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, and such conduct may lead to the initiation of a further administrative sanctioning procedure.

IV.-

On the Cookie Policy of the website

- a).- On the installation of cookies on the terminal equipment prior to consent:

Article 22.2 of the LSSI establishes that users must be provided with clear and complete information

about the use of storage and data retrieval devices and, in particular, about the purposes of data processing.

This information must be provided in accordance with the provisions of the GDPR.

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Therefore, when the use of a cookie involves processing that allows for the identification of the user, the data controllers must ensure compliance with the requirements established by data protection regulations.

However, it is necessary to point out that the obligations established in Article 22.2 of the LSSI are exempted for those cookies necessary for the intercommunication of terminals and the network, and those that provide a service expressly requested by the user.

In this regard, the GT29, in its Opinion 4/2012, interpreted that among the exempted cookies would be the "User Input Cookies" (those used to fill out forms, or for managing a shopping cart); authentication or user identification cookies (session cookies); user security cookies (those used to detect erroneous and repeated attempts to connect to a website); multimedia player session cookies; session cookies for load balancing; user interface personalization cookies; and some plug-in cookies for exchanging social content.

These cookies would be excluded from the scope of application of Article 22.2 of the LSSI, and therefore, it would not be necessary to inform or obtain consent for their use. Conversely, it will be necessary to inform and obtain the user's prior consent before using any other type of cookies, whether first-party or third-party, session or persistent.

In the verification carried out by this Agency on the claimed website, it was found that, upon entering the main page and without taking any action on it or accepting cookies, the following non-essential cookies were used:

Upon entering the website for the first time, without accepting cookies or taking any action on the page, it has been verified that cookies that are not technical or necessary are used:

- 3 Performance Cookies: `_gid`; `_ga_BHX4LX8C4J` and `_ga`

- 1 Targeting Cookie: `_gat_gtag_UA_181162822_9`

c).- Regarding consent for the installation of cookies on the terminal equipment:

For the use of non-exempt cookies, it will be necessary to obtain the user's express consent. This consent can be obtained by clicking on "accept" or inferring it from an unequivocal action taken by the user that indicates that consent has been unequivocally given. Therefore, mere inactivity of the user, scrolling, or browsing the website will not be considered a clear affirmative action in any circumstance and will not imply the granting of consent by itself. Likewise, access to the second layer if the information is presented in layers, as well as the necessary navigation for the user to manage their preferences regarding cookies in the control panel, is also not considered an active behavior from which the acceptance of cookies can be derived.

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The existence of "Cookie Walls" is also not permitted, meaning pop-up windows that block content and access to the website, forcing the user to accept the use of cookies in order to access the page and continue browsing without offering the user any alternative that allows them to freely manage their preferences regarding the use of cookies.

If the option is to direct the user to a second layer or cookie control panel, the link must take the user directly to that configuration panel. To facilitate selection, in the panel, in addition to a granular cookie management system, two more buttons may be implemented: one to accept all cookies and another to reject them all. If the user saves their choice without having selected any cookies, it will be understood

that they have rejected all cookies. In relation to this second possibility, pre-checked boxes in favor of accepting cookies are not admissible under any circumstances.

If for cookie configuration, the website refers to the settings of the browser installed on the terminal device, this option could be considered complementary for obtaining consent, but not as the only mechanism. Therefore, if the publisher opts for this option, they must also provide, in any case, a mechanism that allows the rejection of the use of cookies and/or to do so granularly.

On the other hand, the withdrawal of previously granted consent by the user must be possible at any time. To this end, the publisher must offer a mechanism that allows for easy withdrawal of consent at any time. It will be considered that such ease exists, for example, when the user has simple and permanent access to the cookie management or configuration system.

If the publisher's cookie management or configuration system does not allow for the prevention of the use of third-party cookies once accepted by the user, information about the tools provided by the browser and third parties will be made available, warning that if the user accepts third-party cookies and subsequently wishes to delete them, they must do so from their own browser or the system enabled by third parties for that purpose.

In the case at hand, it is not possible to reject all cookies at once. To manage cookies, it is necessary to access the control panel <> where cookie groups are divided by purposes such as "Select basic ads"; "Create a personalized advertising profile" or "Select personalized ads."

The groups are divided into two options: accepting cookies by "Consent," which are pre-checked in the "not accepted" option, and accepting cookies by "Legitimate Interest," which are pre-checked in the "accepted" option.

However, if all the options marked "accepted" are unchecked, it is verified that the same cookies detected upon entering the website continue to be used without having granted consent.

d).- Regarding the information provided in the second layer (cookie policy):

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In the second layer or "cookie policy," more detailed information must be provided about the characteristics of cookies, including information about the definition and generic function of cookies (what cookies are); the type of cookies used and their purpose (what types of cookies are used on the website); the identification of who uses the cookies, that is, whether the information obtained by the cookies is processed only by the publisher and/or also by third parties with identification of these latter; the retention period of the cookies on the terminal equipment; and if applicable, information about data transfers to third countries and the profiling that involves automated decision-making.

In the case at hand, there is no information about cookies in the second layer or a link that allows the user to redirect to the "Cookie Policy" of the website. The information about cookies appears scattered across each of the options in the control panel.

IV.-2

Classification of the committed infringement

From the deficiencies detected regarding the cookie policy on the website in question: the use of third-party cookies that are not technical or necessary; the impossibility of rejecting third-party cookies; and the lack of information in the "cookie policy," could imply on the part of the respondent the commission of the infringement of Article 22.2 of the LSSI, as it establishes that:

"Service providers may use data storage and retrieval devices on the terminal equipment of the recipients, provided that they have given their consent after being provided with clear and complete information about their use, in particular, about the purposes of data processing, in accordance with the provisions of Organic Law 15/1999, of December 13, on the protection of personal data.

When technically possible and effective, the recipient's consent to accept data processing may be provided through the appropriate parameters of the browser or other applications.

The above shall not prevent the possible storage or technical access solely for the purpose of carrying out the transmission of a communication over an electronic communications network or, to the extent

strictly necessary, for the provision of a service of the information society expressly requested by the recipient.”

IV.-3

Sanction

This infringement is classified as "minor" in Article 38.4 g) of the aforementioned Law, which considers as such: "Using data storage and retrieval devices when the information has not been provided or the consent of the service recipient has not been obtained in the terms required by Article 22.2," and may be sanctioned with a fine of up to €30,000, in accordance with Article 39 of the aforementioned LSSI. Following the evidence obtained in the preliminary investigation phase, and without prejudice to what results from the instruction, it is considered appropriate to graduate the sanction to be imposed according to the following aggravating criteria, established in Article 40 of the LSSI: The existence of intent, a term that must be interpreted as equivalent to the degree of culpability in accordance with the ruling of the National Court of 12/11/07 in Case No. 351/2006, corresponding to the reported entity the determination of a system for obtaining informed consent that complies with the mandate of the LSSI. According to these criteria, it is deemed appropriate to impose an initial sanction of €5,000 (five thousand euros) for the infringement of Article 22.2 of the LSSI, regarding the cookie policy implemented on the website owned by the entity.

Therefore, in accordance with the applicable legislation and evaluated the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Data Protection Agency,

RESOLVES:

FIRST: TO IMPOSE on the entity CHATWITH.IO WORLDWIDE, S.L. with CIF B88184239, owner of the website at ***URL.1, for the infringement of Article 13 of the GDPR, classified in Article 83.5.b) of the same Regulation, and qualified as "minor" for the purposes of prescription in Article 74.a) of the LOPDGDD, a fine of €2,000 (two thousand euros).

SECOND: That the Director of the Spanish Data Protection Agency orders the entity CHATWITH.IO WORLDWIDE, S.L. with CIF B88184239, owner of the website at ***URL.1, to adopt the necessary measures to align its actions with personal data protection regulations within one month from the notification of this act, with the scope expressed in the Legal Basis II.-3 of this resolution. Within the same indicated period, the entity must inform and justify to this Agency the compliance with the imposed measures.

THIRD: TO IMPOSE on the entity CHATWITH.IO WORLDWIDE, S.L. with CIF B88184239, owner of the website at ***URL.1, for the infringement of Article 5.1.a) of the GDPR, classified in Article 83.5.a) of the same Regulation, and qualified as "very serious" for the purposes of prescription in Article 72.1.a) of the LOPDGDD, a fine of €5,000 (five thousand euros).

FOURTH: That the Director of the Spanish Data Protection Agency orders the entity CHATWITH.IO WORLDWIDE, S.L. with CIF B88184239, owner of the website at ***URL.1, to adopt the necessary measures to align its actions with personal data protection regulations within one month from the notification of this act, with the scope expressed.

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in the Legal Basis III.-4 of this resolution. Within the same timeframe indicated, the entity must inform and justify to this Agency the compliance with the measures.

FIFTH: TO IMPOSE on the entity CHATWITH.IO WORLDWIDE, S.L. with CIF B88184239, owner of the website at ***URL.1, for the infringement of Article 22.2 of the LSSI, classified as "minor" for the purposes of prescription in Article 38.4.g) of the aforementioned regulation, a fine of 5,000 euros (five thousand euros).

SIXTH: TO NOTIFY this resolution to the entity CHATWITH.IO WORLDWIDE.

SEVENTH: To warn the sanctioned party that they must pay the imposed sanction once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1,

on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period. Upon receiving the notification and once it is executive, if the date of executivity falls between the 1st and the 15th of each month, both inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, both inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties. Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronicaweb/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law.

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39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal.

If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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